TITLE 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Agricultural Research Service, Department of Agriculture

Subchapter C—Interstate Transportation of Animals and Poultry

PART 83—SCREWWORMS

SEASONAL INFESTATION

Pursuant to sections 1 and 2 of the Act of February 2, 1903, 32 Stat. 791, as amended, and sections 4–7 of the Act of May 29, 1884, 23 Stat. 32, as amended (21 U. S. C. 111–113, 115, 117, 120, 121), the regulations appearing in Part 83, designated "Screwworms", in Title 9 of the Code of Federal Regulations are hereby amended by changing the date "October 31" wherever it appears in §§ 83.1 (i) and (j), 83.2, 83.6, 83.7 (a) and (c), and 83.8 (a), (b) and (c), to read "November 30". It was believed when the original regulations were issued that cold weather eliminates screwworms in Arkansas and the area of seasonal infestation, described in the regulations, each year by October 31.

However, screwworms have been discovered in the midwest since October 31 and the amendment is therefore deemed necessary. The amendment is intended to prevent the interstate spread of screwworms and to facilitate a Federal-State program now in operation for the control and eradication of the disease. In order to accomplish its purpose it should be made effective as soon as possible. Therefore, under section 4 of the Administrative Procedure Act (5 U. S. C. 1003) it is found upon good cause that notice of rule making and other public procedure with respect to such amendment are impracticable and contrary to the public interest and good cause is found for making it effective less than 30 days after publication in the FEDERAL REGISTER.

The foregoing amendment shall become effective upon publication in the FEDERAL REGISTER.

(Secs. 4, 5, 6, 7, 23 Stat. 32, as amended, sec. 1, 32 Stat. 791, as amended; 21 U. S. C. 111–113, 115, 117, 120, 121)

Done at Washington, D. C., this 7th day of November 1958.

[SEAL] B. T. SHAW,
Administrator,
Agricultural Research Service.

[F. R. Doc. 58-9381; Filed, Nov. 10, 1958; 9:21 a. m.]

TITLE 10—ATOMIC ENERGY

Chapter I—Atomic Energy Commission

PART 70—SPECIAL NUCLEAR MATERIAL

ADDITIONAL REQUIREMENTS

The following amendments to these regulations is designed to assure that all licensees who are authorized to possess special nuclear material in amounts which may produce conditions of accidental criticality have in operation adequate alarm systems and emergency plans to evacuate personnel. Inasmuch as the regulation is intended to minimize hazards to life and property, the Atomic Energy Commission has found that general notice of proposed rule making and public procedure thereon are contrary to the public interest and that good cause exists why this amendment should be made effective without the customary period of notice. The Commission will, however, give consideration to any comments or suggestions concerning these requirements. All interested persons who desire to submit written comments and suggestions relating to the following amendment should send them to the United States Atomic Energy Commission, Washington 25, D. C., Attention: Director, Division of Licensing and Regulation.

Effective upon publication Title 10, Chapter I, Part 70, Code of Federal Regulations entitled "Special Nuclear Material" is amended by adding the following new section:

§ 70.24 *Additional requirements.* (a) In addition to any other requirements of these regulations, each licensee who under any license is authorized to possess in excess of 500 grams of contained U–235, 300 grams of plutonium, or 300 grams of U–233 shall in accordance with plans approved by the Commission:

(1) Maintain in each area in which special nuclear material subject to such license is handled, used, or stored, a monitoring system, including gamma or neutron-sensitive radiation devices, which will energize clearly audible alarm signals in the event a condition of accidental criticality occurs which generates radiation levels of 300 rem per hour one foot from the source of the condition. The monitoring devices in the system shall have a preset alarm point of not less than 5 millirem per hour (in order to avoid false alarms) nor more than 20 millirem per hour. In no event may any such device be farther than 120 feet from special nuclear material being handled, used, or stored; lesser distances may be necessary to meet the requirements of this subsection on account of intervening shielding or other pertinent factors.

(2) Maintain comprehensive emergency procedures in each area in which special nuclear material subject to such license is handled, used, or stored to assure that all personnel withdraw to an area of safety upon the sounding of the alarm. These procedures shall include the conduct of drills to familiarize all personnel with the evacuation plan; plans and designation of responsible individuals for determining the cause of the alarm; and placement radiation survey devices in accessible locations for use in such emergency.

(b) Each applicant for a license shall describe his plans for compliance with the requirements of this section as a part of his application for a license.

(c) Each licensee, who on the effective date of this section holds a license described in paragraph (a) of this section, shall file his plans for compliance with the requirements of this section in sextuplicate with the Commission for approval within 30 days after the date upon which this section becomes effective. This report shall include the date by which he proposes to complete the installation of the monitoring system. Information previously filed with the Commission in applications, statements or reports may be incorporated by reference, provided that such references are clear and specific. The requirements of this section shall be deemed to have been suspended with respect to any licensee filing a report pursuant to this paragraph pending further action by the Commission.

(d) Any licensee who believes that good cause exists why he should be granted an exemption in whole or in part from the requirements of this section may apply to the Commission for such exemption. Such application shall specify his reasons for the relief requested.

(Sec. 161, 68 Stat. 948; 42 U. S. C. 2201)

Dated at Germantown, Md., this 31st day of October 1958.

For the Atomic Energy Commission.

PAUL F. FOSTER,
General Manager.

[F. R. Doc. 58-9321; Filed, Nov. 10, 1958; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1750]

[1781495]

[1738266]

CALIFORNIA

AMENDING EXECUTIVE ORDERS NO. 8507 OF AUGUST 8, 1940, AND NO. 8450 OF JUNE 20, 1940, WHICH WITHDREW LANDS FOR USE OF THE WAR DEPARTMENT FOR MILITARY PURPOSES (CAMP IRWIN; CAMP EDWARDS)

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 8507 of August 8, 1940, as amended by Executive Order No. 9098 of March 14, 1942, and Executive Order No. 8450 of June 20, 1940, which withdrew public lands in California for use of the War Department for military purposes, are hereby amended to delete therefrom the following paragraph added thereto by Executive Order No. 9526 of February 28, 1945:

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, jurisdiction over the lands hereby reserved shall be vested in the Department of the Interior, and any other department or agency of the Federal Government according to their respective interests then of record. The lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

2. Executive Order No. 8507 is further amended by substituting the words "Department of the Army" for the words "War Department" wherever they appear.

3. Executive Order No. 8450 is further amended by substituting the words "Department of the Air Force" for the words "War Department" wherever they appear.

ROGER ERNST,
Assistant Secretary of the Interior.

NOVEMBER 5, 1958.

[F. R. Doc. 58-9324; Filed, Nov. 10, 1958; 8:46 a. m.]

TITLE 39—POSTAL SERVICE

Chapter I—Post Office Department

PART 111—POSTAL UNION MAIL

INTERNATIONAL POSTAGE RATES ON PRINTED SHEET MUSIC

Subdivision (iii) of paragraph (d) (1) of § 111.2 *Specific categories*, as contained in Federal Register Document 58-9233 (23 F. R. 8622-8623), is hereby amended, effective January 1, 1959, to read as follows:

(iii) The rates for printed sheet music are as follows:

(*a*) To the countries listed in subdivision (ii) (*a*) of this subparagraph, 2 cents for the first 2 ounces and 1 cent for each additional 2 ounces or fraction.

(*b*) To all other countries, 3 cents for for the first 2 ounces and 1½ cents for each additional 2 ounces or fraction.

NOTE: The corresponding Postal Manual section is 221.241a. (R. S. 161, as amended, 396, as amended, 398, as amended; 5 U. S. C. 22, 369, 372)

HERBERT B. WARBURTON,
General Counsel.

The Department regulations as amended by the foregoing are hereby adopted as the regulations of the Post Office Department.

[SEAL] ARTHUR E. SUMMERFIELD,
Postmaster General.

[F. R. Doc. 58-9420; Filed, Nov. 10, 1958; 9:36 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 933]

ORANGES, GRAPEFRUIT, TANGERINES, AND TANGELOS GROWN IN FLORIDA

EXPENSES AND FIXING OF RATE OF ASSESSMENT FOR 1958-59 FISCAL PERIOD

Consideration is being given to the following proposals submitted by the Growers Administrative Committee, established under Marketing Agreement No. 84, as amended, and Order No. 33, as amended (7 CFR Part 933), regulating the handling of oranges, grapefruit, tangerines, and tangelos grown in Florida, effective under the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), as the agency to administer the terms and provisions thereof: (1) That the Secretary of Agriculture find that expenses not to exceed $189,000.00 will be necessarily incurred during the fiscal period August 1, 1958, to July 31, 1959, for the maintenance and functioning of the committee established under the aforesaid amended marketing agreement and order, and (2) that the Secretary of Agriculture fix, as each handler's share of such expenses, the rate of assessment, which each handler shall pay during the aforesaid fiscal period in accordance with the aforesaid amended marketing agreement and order, at seven mills ($0.007) per standard packed box of fruit shipped by such handler during such fiscal period.

All persons who desire to submit written data, views, or arguments in connection with the aforesaid proposals shall file the same with the Director, Fruit and Vegetable Division, Agricultural Marketing Service, Room 2077, South Building, United States Department of Agriculture, Washington 25, D. C., not later than the close of business on the 10th day after the publication of this notice in the FEDERAL REGISTER. All documents should be filed in quadruplicate.

As used herein, "handler," "shipped," "fruit," "fiscal period," and "standard packed box" shall have the same meaning as is given to each such term in the said amended marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: November 5, 1958.

[SEAL] G. R. GRANGE,
Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 58-9335; Filed, Nov. 10, 1958; 8:49 a. m.]

[7 CFR Part 943]

[Docket No. AO-231-A10]

MILK IN NORTH TEXAS MARKETING AREA

DECISION TERMINATING PROCEEDING WITH RESPECT TO PROPOSED AMENDMENTS TO TENTATIVE MARKETING AGREEMENT AND ORDER

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held at Dallas, Texas, on December 13, 1957, pursuant to notice thereof issued on December 4, 1957 (22 F. R. 9839). The Acting Deputy Administrator, Agricultural Marketing Service, on June 2, 1958 (23 F. R. 3930) filed with the Hearing Clerk, United States Department of Agriculture, his recommended decision containing notice of and opportunity to file written exceptions thereto.

The Department has been requested by producers' cooperative associations, (representing the majority of producers in the market) including that which made the original request for a hearing on proposed amendments to the marketing order regulating the handling of milk in the North Texas marketing area, to terminate the proceeding on the existing public hearing without amendatory action.

The principal effect of the amendment would be to change the seasonal pattern of Class I prices (without changing the annual level) in order to more closely align such prices with Class I prices in other Federal order areas. This change would tend to reduce the disposition in the North Texas market during the flush production period of milk from other Federal order areas. It, therefore, would tend to increase the utilization in Class I of milk delivered directly to North Texas plants and, hence, it would tend to improve the returns to the producers of such milk. The amendment would have had little effect on handlers' costs of Class I milk.

The amendment was designed to advantage producers in this marketing area but since a majority of them have requested a termination of the proceeding, it is concluded that no action should be taken relative to the proposed amendments to the tentative marketing agreement and order on the basis of the existing public hearing record and the proceeding is hereby terminated.

This decision filed at Washington, D. C., this 6th day of November 1958.

[SEAL] E. L. PETERSON,
Acting Secretary.

[F. R. Doc. 58-9349; Filed, Nov. 10, 1958; 8:50 a. m.]

[7 CFR Part 951]

[Docket No. AO-135-A5]

TOKAY GRAPES GROWN IN SAN JOAQUIN AND SACRAMENTO COUNTIES IN CALIFORNIA

DECISION WITH RESPECT TO PROPOSED AMENDMENT OF AMENDED MARKETING AGREEMENT AND ORDER

Pursant to the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900; 23 F. R. 4027, 4779), a public hearing was held at Lodi, California, on March 24, 1958, after notice thereof published in the FEDERAL REGISTER (23 F. R. 1149) on the proposed amendment of the marketing agreement, as amended, and to Order No. 51, as amended (7 CFR Part 951), regulating the handling of Tokay grapes grown in San Joaquin and Sacramento Counties in California, to be made effective pursuant to the provisions of the Agricultural Marketing